

24STCV30580 24STCV30580

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-14

Motion: DEFENDANT LOS ANGELES POLICE DEPARTMENT'S MOTION TO QUASH SERVICE

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Case Number: 24STCV30580 Hearing Date: July 14, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ABERA KASSA,

Plaintiff,

vs.

LOS ANGELES POLICE DEPARTMENT,

Defendant.

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CASE

NO.: 24STCV30580

[TENTATIVE] ORDER RE:

DEFENDANT LOS ANGELES POLICE
DEPARTMENT'S MOTION TO QUASH SERVICE

Dept. 733

8:30 a.m.

July 14, 2026

I.

INTRODUCTION

This case arises
from the alleged wrongful arrest of Plaintiff Abera Kassa ("Plaintiff").

On November 20,
2024, Plaintiff initiated this action against Defendant City of Los

Angeles, erroneously sued as "Los
Angeles Police Department" ("Defendant").

On December 18,
2024, Plaintiff filed a first amended complaint ("FAC").

On June 30, 2025,
Defendant filed an answer.

On October 9, 2025,
Defendant filed a motion for judgment on the pleadings, which the Court granted
on January 9, 2026.

On
January 12, 2026, Plaintiff filed a second amended complaint ("SAC"), alleging
causes of action for (1) Unlawful Seizure and Arrest, (2) First Amendment
Retaliation, (3) Interference with Right to Record Police, (4) Municipal
Liability

On February 25,
2026, Defendant filed the instant motion to quash service.

On May 18, 2026,
Plaintiff filed an opposition.

On July 7, Defendant
filed a reply.

II. LEGAL STANDARD

"Service of
process, under longstanding tradition in our system of justice, is fundamental
to any procedural imposition on a named defendant.' [Citation.]" (AO
Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202.) "To establish
personal jurisdiction, compliance with statutory procedures for service of
process is essential." (Kremerman v. White (2021). 71 Cal.App.5th
358, 371.) Defendant's knowledge of the action does not dispense with
statutory requirements for service of summons. (Kappel v. Bartlett
(1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on
or before the last day of his or her time to plead or within any further time
that the court may for good cause allow" may move "to quash service of summons
on the ground of lack of jurisdiction of the court over him or her" that
results from lack of proper service. (Code of Civ. Proc., § 418.10, subd.
(a)(1)). A defendant has 30 days after the service of the summons to file
a responsive pleading. (Code Civ. Proc., § 412.20, subd.

(a)(3).)

Once a challenge

to the court's personal jurisdiction is filed, "the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response." (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

III.

DISCUSSION

Defendant moves to

quash the service of Plaintiff's SAC upon Defendant on the ground that The Los Angeles Police Department is not an entity that can be sued.

Code of Civil

Procedure section 410.50 provides that "a general appearance by a party is equivalent to personal service

of summons on such party," and that jurisdiction "continues throughout subsequent proceedings in the action." (Code Civ. Proc., § 410.50(a)-(b).)

Section 1014 expressly defines a "general appearance" to include the filing of an answer, stating that a "defendant appears in an action when the defendant answers" (Id. § 1014; Factor Health Mgmt. v. Superior

Ct. ("Factor Health")

(2005) 132 Cal.App.4th 246, 250 ["A general appearance is one in which the defendant participates in the action in a manner which recognizes the court's jurisdiction."].)

Also, "[u]nder subdivision (e)(3) of section 418.10, a party still

will be deemed to have "generally appeared" in the action if the

party fails to file a motion under subdivision (a) of 418.10 and otherwise

engages in acts or activities that recognize the court's jurisdiction over the

party. If, however, a party files a motion under that subdivision before or simultaneously

with an act that would otherwise constitute a general appearance,

under subdivision (e) of section 418.10 that party will not be deemed to have 'generally appeared'

in the action, but instead will be deemed to have 'specially appeared' and

not waived the party's jurisdictional challenge." (Air Mach. Com SRL v. Superior Ct. (2010) 186 Cal.App.4th 414, 426.) This means that "a

defendant may move to quash coupled with any other action without being deemed to have submitted to the court's jurisdiction." (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 345.)

But this "does not mean that a defendant may take action

which constitutes a general appearance and then negate the effect of that

action by a subsequent motion to quash." (Factor Health, supra, 132 Cal.App.4th at p. 251-252.) That

is explicitly what Defendant is attempting to do. On June 30, 2025, Defendant

filed an answer to Plaintiff's FAC as "City of Los Angeles (erroneously sued

and named as Los Angeles Police Department)." Months later, on October 9, 2025,

Defendant, as "City of Los Angeles (erroneously sued and named as Los Angeles

Police Department)" then filed a motion for judgment on the pleadings as to

Plaintiff's FAC. It wasn't until February 25, 2026, following Plaintiff's

filing of the SAC, that Defendant sought to quash service. (Greener v. Workers' Comp. Appeals Bd. (1993) 6 Cal.4th

1028, 1037 ["Notwithstanding a 'special appearance' designation on a motion to

quash, if the movant seeks relief on any basis other than lack of personal

jurisdiction, he or she makes a general appearance."].)

Defendant has undoubtedly generally

appeared and submitted to the Court's jurisdiction. Defendant's motion is

denied. Defendant is free to make the same clarification ("erroneously sued

as") in its next pleading.

IV.

CONCLUSION

Based on the foregoing, Defendant's

motion to quash service is DENIED.

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Dated this 14th

day of July 2026

Hon. Gary

D. Roberts

Judge
of the Superior Court